Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1483
Claimant:	Kirsten Howe
Adjuster:	Darin Tyler

2 Mar 2024 - Claim opened following a low-speed head-on collision reported by the insured. Insured states the other vehicle crossed into their lane on a curve at low speed. Both drivers reported no aribag deployment and both vehicles were driven from the scene. Initial liability appears disputed pending police report. Claimant reports back strain and has retained counsel, who has requested that all contact be routed through the attorney's office.

3 Mar 2024 - Police report received. Responding officer noted minor front-end damage to both vehicles and documented the other driver's statement that they were attempting to avoid debris. Preliminary fault assessment under review. Attorney's office confirmed representation in writing and asked for the claimant's medical authorization forms. Forms sent. Reserve set for bodily injury and property damage pending evaluation.

6 Mar 2024 - Photos of both vehicles reviewed. Damage consistent with reported low-speed impact. Repair estimate for insured vehicle obtained from shop of insured's choice. Independent appraiser assigned to other vehicle. Attorney's office has submtited a demand package listing treatment for lumbar strain, including chiorpractic visits and a course of physical therapy. Records requested from listed providers and are being reviewed for prior history of back complaints.

14 Mar 2024 - Medical records received from primary care provider. Documentation notes onset of lower back pain the day after the collision with muscle spasm on exam, no neurological deficits, and no imaging ordered at this time. Prior visit from several years ago references intermittent back discomfort, which counsel has been asked to address. Desk review scheduled with the claims supervisor to evaluate causation and the reasonableness of the treatment plan. Communication with the attorney's office continues in writing only.

23 Mar 2024 - Supervisor review completed. Liability position updated to shared, pending the other carrier's response on comparative fault. Bodily injury evaluation is on hold until the physical therapy discharge summary is received. Attorney's office was advised in writing that the file remains open and that a settlement position will follow once the records are complete. Diary set for follow-up in thirty days.

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Recorded Statement

Claim number:	C-1483
Statement of:	Kirsten Howe
Taken by:	Darin Tyler
Date:	7 Mar 2024

Q: Thank you for taking the time to give this recorded statement. Please state your full name for the record.

A: I'd rather not put my name on it yet, if that's okay. My lawyer said I could give the facts first.

Q: That's fine. Can you tell me where you were when the collision happened?

A: I was driving on the main road in Pearland, heading toward the shopping center near the bridge. It was in the afternoon, around rush hour.

Q: What happened right before the impact?

A: The other car came over into my lane. I braked and swerved to the right, but the front of their vehicle still hit mine. It was almost head-on, but the speed was low. Maybe fifteen or twenty miles an hour.

Q: Did your airbags deploy?

A: No, they didn't. I just felt a hard jolt and my seat belt locked across my chest.

Q: Did you get out of the vehicle at the scene?

A: Yes, I got out and walked around for a few minutes. My neck felt stiff and my lower back was sore, but I didn't think much of it at the time.

Q: When did you first notice the back pain getting worse?

A: The next morning. When I got out of bed, the pain went from my lower back down into my hip. Bending over was hard, and sitting for long periods made it worse.

Q: Have you seen a doctor since the accident?

A: Yes, I went to an urgent care clinic two days later. They diagnosed a back strain and gave me muscle relaxers and a referral for physical therapy. I've been going to therapy twice a week.

Q: Are you still experiencing symptoms today?

A: Yes. Some days are better than others. Lifting anything heavy still hurts, and I've had to take time off work.

Q: Thank you. Is there anything else you'd like to add to your statement?

A: Only that I'm willing to provide my medical records and the repair estimate for my car. I'd like this handled as quickly as possible.

Q: Understood. This concludes the statement. Thank you.

A: Thank you.